

Administrative Instructions for the Application of the Hague Agreement

(as in force on July 17, 2025)

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Part One

Definitions

Section 101: Abbreviated Expressions

- (a) For the purposes of these Administrative Instructions:
 - (i) “Regulations” means the Regulations under the Geneva Act (1999) of the Hague Agreement Concerning the International Registration of Industrial Designs;
 - (ii) “Rule” means a Rule of the Regulations.
- (b) An expression which is used in these Administrative Instructions and is referred to in Rule 1 has the same meaning as in the Regulations.

Part Two

Communications with the International Bureau

Section 201: Communication in Writing; Several Documents in One Envelope

- (a) Communications addressed to the International Bureau shall be effected in writing by typewriter or other machine and shall be signed.
- (b) If several documents are mailed in one envelope, they should be accompanied by a list identifying each of them.

Section 202: Signature

- (a) A signature shall be hand written, printed, typed or stamped.
- (b) With respect to electronic communications referred to in Section 204(a)(i) or communications through a user account referred to in Section 205, a signature may be replaced by a mode of identification to be determined by the International Bureau. With respect to electronic communications referred to in Section 204(a)(ii), a signature may be replaced by a mode of identification agreed upon between the International Bureau and the Office concerned.

Section 203: [Deleted]***Section 204: Electronic Communications***

- (a) (i) Communications with the International Bureau, including the presentation of the international application, may take place by electronic means at a time and in a manner and format to be ascertained by the International Bureau, the particulars of which shall be published on the web site of the Organization.
- (ii) Notwithstanding subparagraph (i) above, and subject to paragraph (d) below, electronic communications between an Office and the International Bureau may take place in a way agreed upon between the International Bureau and the Office concerned.
- (b) The International Bureau shall promptly and by electronic transmission inform the originator of an electronic transmission of the receipt of that transmission and, where the electronic transmission received is incomplete or otherwise unusable, also of that fact, provided that the originator can be identified and can be reached. Such an acknowledgement shall contain the date of receipt in the case of an international application.
- (c) Where a communication is transmitted to the International Bureau by electronic means and, because of the time difference between the place from where the communication is sent and Geneva, the date on which the sending started is different from the date of receipt by the International Bureau of the complete communication, the earlier of the two dates shall be considered as the date of receipt by the International Bureau.
- (d) Where the Office of a Contracting Party wishes to receive a communication by the International Bureau of the date on which each issue of the Bulletin is published, that Office shall notify the International Bureau of that fact and indicate the email address to which the said communication shall be sent.

Section 205: Communications Through User Accounts Available on the Web Site of the Organization

- (a) A user account may be established by an interested party who has agreed to the “Terms and Conditions of Use” issued by the International Bureau. Communications through the user account shall be authenticated through the use of the account holder’s user name and password.

- (b) An international application or other request as specified in the “Terms and Conditions of Use”, may be submitted through an electronic interface made available by the International Bureau on the web site of the Organization and shall indicate an email address.
- (c) The International Bureau may transmit communications to the holder of the account through the user account.

Part Three

Requirements Concerning Names and Addresses

Section 301: Names and Addresses

- (a) In the case of a natural person, the name to be indicated is the family or principal name and the given or secondary name(s) of the natural person.
- (b) In the case of a legal entity, the name to be indicated is the full official designation of the legal entity.
- (c) In the case of a name in characters other than Latin characters, the indication of that name shall consist of a transliteration into Latin characters which shall follow the phonetics of the language of the international application. In the case of a legal entity whose name is in characters other than Latin characters, the said transliteration may be replaced by a translation into the language of the international application.
- (d) An address shall be given in such a way as to satisfy the customary requirements for prompt postal delivery and shall consist, at least, of all the relevant administrative units up to, and including, the house number, if any. In addition, a telephone number may be indicated.

Section 302: Email Address for Correspondence

Where there are two or more applicants or new owners and no representative is appointed, one email address for correspondence shall be indicated. Where no such address is indicated, the email address of the person named first shall be treated as the email address for correspondence.

Part Four**Requirements Concerning Reproductions and Other Elements of the International Application*****Section 401: Presentation of Reproductions***

- (a) One and the same international application may comprise both photographs and other graphic representations, in black and white or in color.
- (b) Each reproduction accompanying an international application shall be submitted in a single copy.
- (c) The photographs or other graphic representations accompanying an international application filed on paper shall be either pasted or printed directly onto a separate sheet of A4 paper which is white and opaque. The separate sheet of paper shall be used upright and shall not contain more than 25 reproductions.
- (d) The reproductions accompanying an international application must be arranged in the orientation in which the applicant wishes them to be published. Where that application is filed on paper, a margin of at least 5 millimeters should be left around the representation of each industrial design.
- (e) Each reproduction must fall within a right-angled quadrilateral containing no other reproduction or part of another reproduction and no numbering. The photographs or other graphic representations shall not be folded, stapled or marked in any way.

Section 402: Representation of the Industrial Design

- (a) The photographs and other graphic representations shall represent the industrial design alone, or the product in relation to which the industrial design is to be used, to the exclusion of any other object, accessory, person or animal.
- (b) The dimensions of the representation of each industrial design appearing in a photograph or other graphic representation may not exceed 16 x 16 centimeters, and in respect of at least one representation of each design, one of those dimensions must be at least 3 centimeters. With respect to the filing of international applications by electronic means, the International Bureau may establish a data format, the particulars of which

shall be published on the web site of the Organization, to ensure compliance with these maximum and minimum dimensions.

- (c) The following shall not be accepted:
 - (i) technical drawings, particularly with axes and dimensions;
 - (ii) explanatory text or legends in the representation.

Section 403: Disclaimers and Matter That Does Not Form Part of the Industrial Design or the Product in Relation to Which the Industrial Design Is to Be Used

- (a) Matter which is shown in a reproduction but for which protection is not sought may be indicated
 - (i) in the description referred to in Rule 7(5)(a) or
 - (ii) by means of dotted or broken lines or coloring, accompanied by a supporting statement in the description referred to in Rule 7(5)(a).
- (b) Notwithstanding Section 402(a), matter that does not form part of the industrial design or the product in relation to which the industrial design is to be used may be shown in a reproduction if it is indicated in accordance with paragraph (a).

Section 404: Requirements for Photographs and Other Graphic Representations

- (a) The photographs supplied must be of professional standard and have all the edges cut at right angles. The industrial design must be shown against a neutral plain background. Photographs retouched with ink or correcting fluid shall not be allowed.
- (b) Graphic representations must be of professional standard produced with drawing instruments or by electronic means and, where the application is filed on paper, must further be produced on good quality white, opaque paper, all of whose edges are cut at right angles. The industrial design represented may comprise shading and hatching to provide relief. Graphic representations executed by electronic means may be shown against a background, provided that it is neutral and plain and has only edges cut at right angles.

Section 405: Numbering of Reproductions and Legends

- (a) The numbering stipulated for multiple international applications shall appear in the margin of each photograph or other graphic representation. When the same industrial design is represented from different angles, the numbering shall consist of two separate figures separated by a dot (e.g., 1.1, 1.2, 1.3, etc. for the first design, 2.1, 2.2, 2.3, etc. for the second design, and so on).
- (b) The reproductions shall be submitted in ascending numerical order.
- (c) Legends to indicate a specific view of the product (e.g., “front view”, “top view”, etc.) may be indicated in association with the numbering of the reproduction.

Section 406: Requirements for Specimens

- (a) A specimen in two dimensions which accompanies an international application shall not exceed 26.2 centimeters x 17 centimeters in size (unfolded), 50 grams in weight or 3 millimeters in thickness. Such specimens shall be pasted on sheets of A4 paper and numbered in accordance with Section 405(b). The same number shall be assigned to each reproduction corresponding to these specimens when submitted to the International Bureau.
- (b) None of the dimensions of a package containing specimens shall exceed 30 centimeters and the weight of such package and its packing shall not exceed 4 kilograms.
- (c) Perishable products or products which may be dangerous to store shall not be accepted.

Section 407: Relation With a Principal Industrial Design or a Principal Application or Registration

- (a) Where the applicant wishes any or all of the industrial designs which are contained in the international application to be considered, under the law of a designated Contracting Party that so provides, in relation to any national or international application or registration (the principal application or registration), or to any certain industrial design contained in a national or international application or registration (the principal industrial design), the international application shall contain a request to

that effect, identifying the Contracting Party concerned and providing the reference to the principal application or registration, or to the principal industrial design.

- (b) For the purpose of subparagraph (a), the reference to the principal application or registration or to the principal industrial design shall be indicated in either of the following manners:
 - (i) Where the principal industrial design is contained in the same international application, the number of that industrial design;
 - (ii) Where the principal industrial design is the subject of another national or international registration, the number of the national or international registration concerned, together with the number of the principal industrial design if such a registration contains more than one industrial design;
 - (iii) Where the principal industrial design is the subject of a national application which has not matured into registration, the number of the national application concerned or, if not available, the applicant's reference for that national application, together with the number of the principal industrial design if such an application contains more than one industrial design, or
 - (iv) Where the principal industrial design is the subject of an international application which has not matured into international registration, the reference given by the International Bureau to that international application, together with the number of the principal industrial design if such an application contains more than one industrial design.
- (c) Where the request under subparagraph (a) concerns only one or some of the industrial designs which are contained in the international application, the request shall also indicate the numbers of the industrial designs concerned.

Section 408: Permitted Matters in the International Application and Permitted Documents Accompanying an International Application

- (a) Where the applicant has made a declaration under Rule 7(5)(c) claiming priority of an earlier filing in the international application, that claim may be accompanied by a code allowing to retrieve that filing in a Digital Access Service for Priority Documents (DAS) digital library*;
- (b) Where the applicant wishes to benefit from a reduction of an individual designation fee as indicated in a declaration made under Article 7(2) by a designated Contracting Party, the international application may contain an indication or claim of the economic status entitling the applicant to the reduced fee as indicated in the declaration, as well as the certificate thereof, where applicable.
- (c) (i) Where the applicant wishes to make a declaration concerning exception to lack of novelty in the international application, as may be prescribed under the law of a designated Contracting Party, the declaration shall be worded as follows, with the indication of those industrial designs to which the declaration relates:

“Declaration Concerning Exception to Lack of Novelty

The applicant claims to benefit from exceptional treatments provided for in the applicable laws of the designated Contracting Parties concerned, for disclosure of [all] the [following] industrial designs included in the present application.”

(ii) Where the applicant wishes to submit documentation on the type and date of disclosure, the international application may be accompanied by such documentation.
- (d) Where the applicant wishes to submit a statement as referred to in Rule 7(5)(g), the statement shall be in the format established by the International Bureau in agreement with the designated Contracting Party concerned.

* Offices of Contracting Parties are encouraged to participate in the WIPO Digital Access Service (WIPO DAS) with respect to priority documents for design applications.

Part Five

Refusals

Section 501: Date of Sending of Notification of Refusal

In the case of a notification of refusal sent through a postal service, the date of dispatch shall be determined by the postmark. If the postmark is illegible or missing, the International Bureau shall treat such notification as if it had been sent 20 days before the date of its receipt by the International Bureau. However, if the date of dispatch thus determined is earlier than any date of refusal or date of sending mentioned in the notification, the International Bureau shall treat such notification as if it had been sent on the latter date. In the case of a notification of refusal sent through a delivery service, the date of dispatch shall be determined by the indication given by such delivery service on the basis of the details of the mailing as recorded by it.

Section 502: Notification of Division of an International Registration

Where an international registration has been divided before the Office of a designated Contracting Party following a notification of refusal as provided for in Rule 18(3), that Office shall notify the International Bureau of that fact, together with the following additional particulars:

- (i) the Office making the notification;
- (ii) the number of the international registration concerned;
- (iii) the numbers of the industrial designs which have been the subject of the division with the Office concerned, and
- (iv) the resulting national or regional application numbers or registration numbers.

Part Six

Request for the Recording of a Limitation or Renunciation Before Publication

Section 601: Latest Time to Request the Recording of a Limitation or Renunciation

Where Rule 17(1)(ii) or (iii) applies, a request for the recording of a limitation or renunciation concerning that registration, complying with the applicable requirements, must be received by the International Bureau not later than three

weeks prior to the expiry of the period for publication referred to in Rule 17(1)(ii) or (iii), respectively. In default of this, the international registration is published as provided in Rule 17(1)(ii) or (iii), as the case may be, without account being taken of the request for the recording of a limitation or renunciation. Provided that the request for limitation or renunciation complies with the applicable requirements, the limitation or renunciation is however recorded in the International Register.

Part Seven

Renewal

Section 701: Unofficial Notice of Expiry

When, pursuant to Rule 23, the International Bureau sends to the holder and the representative, if any, a notice indicating the date of expiration of an international registration, such notice shall contain also an indication of the Contracting Parties for which, at the date of the notice, and in accordance with the maximum duration of protection notified by each Contracting Party pursuant to Article 17(3)(c) and Rule 37(2)(c), renewal of the international registration is possible.

Part Eight

Fees

Section 801: Modes of Payment

Fees may be paid to the International Bureau

- (i) by debit to a current account with the International Bureau,
- (ii) by payment into the Swiss postal check account or to any of the specified bank accounts of the International Bureau,
- (iii) through an online payment system made available by the International Bureau.

Part Nine

Confidential Copies

Section 901: Transmission of Confidential Copies

- (a) The confidential copy of an international registration provided for under Article 10(5) shall be transmitted to any Office concerned by electronic means in accordance with Section 204(a)(ii).
- (b) Notwithstanding paragraph (a) above, a specimen submitted to the International Bureau pursuant to Rule 10(1)(ii) shall be transmitted in an appropriate manner.

Section 902: Updating of Data Concerning the International Registration

- (a) Where the international registration referred to in Section 901(a) is cancelled pursuant to Rule 16(5), that cancellation shall be communicated to any Office that has received a confidential copy of the said international registration.
- (b) Where, with respect to the international registration referred to in Section 901(a), a change is recorded in the International Register pursuant to Rule 21(1)(a) before the publication of the said international registration, that change shall be communicated to any Office that has received a confidential copy of the international registration, except where the change is specific to the designations of other Contracting Parties.
- (c) Paragraph (b) shall apply to any correction effected under Rule 22(1) before the publication of the international registration.
- (d) Any cancellation, change or correction referred to in this section shall be communicated in the same manner as provided for in Section 901(a).